IN THE DISTRICT COURT A HELD AT KOFORIDUA THIS WEDNESDAY THE 11TH OF JUNE 2025 BEFORE HER WORSHIP NANA AMA DABBAH FYNN NKANSAH(MRS)

SUIT NO A2/46/2022

1. **GEORGE AGYAPONG BOATENG**
2. **THELMA OFORI BOATENG**

VRS

PRINCE FAISAH

KNT/C 175-KOFORIDUA

JUDGMENT

This suit commenced with the issuance of a writ of summons and statement of claim on 12/11/21 in which was endorsed the following reliefs against the Defendant for:

1. An order of the Honourable court compelling the Defendant to refund an amount of GHS 26,000 being the outstanding rent advance paid to the Defendant which said amount has been unpaid till date.

2. Interest at the prevailing bank rate and cost of litigation.

PLAINTIFF'S CASE

The Plaintiffs aver that the Defendant approached the 1st Plaintiff and informed him of an available uncompleted property which he intended to rent out to the 1st Plaintiff.

The 1st Plaintiff avers that the Defendant represented that the said property comprised a kitchen, storeroom, bar, and three (3) uncompleted washrooms.

Following an inspection of the premises sometime in March 2021, the parties reached an agreement for the rental of the property at a total sum of Thirty-Six Thousand Ghana Cedis (GHS 36,000.00), payable in installments, for a term of five (5) years, at a rate of GHS 600.00 per month.

The 1st Plaintiff states that, as part of the agreement, the Defendant undertook to complete and make functional the kitchen, bar, and toilet facilities within the premises. The 1st Plaintiff further states that he duly paid the entire agreed rent in accordance with the parties' agreement.

However, the 1st Plaintiff discovered that the Defendant had failed to complete the specific portions of the property as agreed. The Plaintiff subsequently requested an extension of the rental period to enable him to undertake the completion works himself, or alternatively, a refund of part of the rent paid. The Defendant, however, declined the request and insisted that he was bound only by the original agreement.

Despite repeated demands, the Defendant refunded only Ten Thousand Ghana Cedis (GHS 10,000.00), leaving an outstanding balance, which he has refused or neglected to refund. Consequently, the Plaintiffs have instituted the present action to recover the balance and seek the appropriate reliefs.

DEFENDANT'S CASE

The Defendant states that he finished all the work that he agreed with the 1st Plaintiff so to do yet upon taking possession of the space for about a week or two, Plaintiff called Defendant and asked that his rent be extended so he can do some more work

on the space. It is Defendant's case that upon his failure to extend the rent, 1ST Plaintiff demanded for his money which he informed Plaintiff that the 5 year tenancy was still in force and as such Plaintiff was to comply with same.

BURDEN OF PROOF

It is without question and quite trite law that the Plaintiff has a burden to prove his case to the standard required in civil actions; that is, on a balance of probabilities.

Section 11 of the Evidence Act, 1975 (NRCD 323) states in part;

Section 11—Burden of Producing Evidence Defined.

(1) For the purposes of this Decree, the burden of producing evidence means the obligation of a party to introduce sufficient evidence to avoid a ruling against him on the issue.
(4) In other circumstances the burden of producing evidence requires a party to produce sufficient evidence so that on all the evidence a reasonable mind could conclude that the existence of the fact was more probable than its non-existence.

Regarding the burden of proof, the dictum of the Supreme Court in the case of **KLAH v. PHOENIX INSURANCE CO. LTD [2012] SCGLR 1139**, is relevant here. In that case, it was held that;

"Where a party makes as averment at capable of proof in some positive way e.g. by producing documents, description of things, reference to other facts, instances and his averment is denied, he does not prove it by merely going into the witness box and repeating that averment on oath

or having it repeated on oath by his witness. He proves it by producing other evidence of facts and circumstances from which the court can satisfy itself that what he avers is true."

(See also OKUDZETO ABLAKWA (NO.2) v. ATTORNEY-GENERAL &ANOR [2012] 2 SCGLR 845 @847 regarding what is expected of a person who goes to court and makes an allegation).

(See also: ACKAH v. PERGAH TRANSPORT LIMITED &ORS (2010) SCGLR 736)

By the same measure, the Plaintiff is required to prove his claims against the Defendant on a balance of probabilities.

In FRABINA LTD v. SHELL GHANA LTD. [2011] 33 GMJ 1SC, (@pages 27-28), the Court per Brobbey JSC stated;

"What must be noted is that, in evaluating evidence in judicial proceedings, a court has several sources to draw material evidence from:

1. *First are the pleadings. Where the pleadings are not in contention, it is safe for the trial judge to draw from it and make his conclusions….*

2. *The second is the oral evidence that has been led in court. The credibility of oral evidence is normally tested through cross-examination ……..*

3. . *The third is the documentary evidence. This normally takes the form of documents that are tendered during the course of trial and upon which questions are asked during examination in chief and cross-examination. It can also take the form of reports submitted by court appointed expert witnesses such as Surveyors, Accountants, Medical Doctors, etc who testify and tender in reports prepared by them to help the judge in determining the case one way or the other.*

4. The fourth are judicial decisions and authorities touching and dealing with principles of law in the subject matter of the case on trial. This is normally done during the closing addresses by Counsel of the parties to the court.

Upon a critical evaluation of the evidence led by both parties, the determination of the case herein shall turn on whether or not the Plaintiffs are entitled to their reliefs.

In respect of Plaintiffs' relief 1, the recovery of the GHS 26,000.00, the Defendant during cross examination admits that the entire amount paid by Plaintiff was GHS36,000 which he refunded GHS 10,000 before the commencement of this suit.

During cross examination of Defendant on 15/08/24 at page 39 of the record of proceedings, this is what ensued:

'Q: Are you telling the court that you are not liable for the rest of the GHS36000 he expended on the facility?

A: I am liable

Q: After you paid the GHS 10,000, the Plaintiff has demanded his balance but you have refused to pay him.

A: I have not decided not to pay. He has not asked me.'

The answers by the Defendant in these immediate paragraphs amount, in no uncertain terms, an admission in law.

In the case of **IN RE ASERE STOOL; NIKOI OLAI AMONTIA IV (SUBSTITUTED BY TAFO AMON II) v AKOTIA OWORSIKA III (SUBSTITUTED BY) LARYEA AYIKU III (2005-2006) SCGLR 637,** the Supreme Court, speaking through Dr Seth Twum JSC (as he then was) posited as follows;

'In my view this type of proof is a salutary rule of evidence based on common-sense and expediency. Where your adversary has admitted a fact advantageous to your cause, what better evidence do you need to establish that fact than by relying on his own admission. This is really an example of estoppel by conduct. It is a rule whereby a party is precluded from denying the existence of some state of facts which he had formerly asserted.'

Thus, in light of this tacit admission by the Defendant himself, this court grants Relief 1 of the Plaintiff's reliefs.

In respect of the Relief 2 which is about the Plaintiffs' claim of interest, the antecedent of this case shows that the Defendant could have saved all of us the trouble of this case travelling all the way to this stage of judgment if he had admitted at the onset that he was liable to pay the GHS26,000 to the Plaintiff. That admission came too late in the day. The basis of the award of interest is simple. Defendant owes Plaintiff an amount of money. He knows very well that he is supposed to pay the money, and he has refused to pay despite demands made on him. This matter has travelled in this court for 4 years and the value of GHS 26,000 4 years ago is not the same as the value of GHS 26,000.00 today. I shall therefore award interest at the prevailing bank rate from November 2021 till date of final payment.

Cost of GHS 7000.00 in favour of Plaintiffs.